Dated this 7th MAY, TWO THOUNSAND TWENTY-FIVE

TO

FUNDIT CAPITAL SOLUTIONS LIMITED

SALE AND PUPCHASE AGREEMENT

CONTRACT AND CONDITIONS OF SALE

AN AGREEMENT made the 7TH **DAY OF MAY, TWENT TWENTY-FIVE**
BETWEEN (CHIMWE INVESTMENTS LIMITED)

(together with its assigns and successors, hereinafter called "the Borrower") of the one part and **FUNDIT CAPITAL SOLUTIONS LIMITED** a company incorporated in Zambia (together with its assigns and successors, hereinafter called "the Lender") of the other part.

WHEREAS the Borrower is the beneficial or absolute owner of the property described in the Accompanying Particulars (hereinafter "the Property").

WHEREAS the Borrower is indebted to the Lender in the sum of hereinafter the "Facility Amount", which indebtedness has been contracted pursuant to the facility letter dated ("the Facility Letter") between the
Borrower and the Lender.

WHEREAS the subject of this Sale and Purchase Agreement (hereinafter S&P Agreement) remains held and in the custody and possession of the Lender as security to cover the Facility Amount for the period of repayment.

WHEREAS the Borrower absolutely and without reservation pledges, surrenders or gives up the Property as security as such.

WHEREAS the Borrower and Lender execute this S&P Agreement on the terms outlined herein.

WHEREBY IT IS AGREED that the Borrower shall, in default of settling the Facility Amount on the Due Date (as provided in the Facility Letter), sell and the Lender will purchase the Property referred to in the accompanying particulars at the price of
(hereinafter called "the Purchase Price") which Price shall be equal to the Facility Amount outstanding at the Due Date subject to and upon the accompanying terms and conditions expressly declared and adopted herein and the Borrower and the Lender do on their respective parts agree to complete the said S&P Agreement on the said terms and conditions.

IN WITNESS WHEREOF, the Parties hereto have executed this S & P Agreement on the date and year first herein above written in the following manner: -

SIGNED BY **DINGISWAYO ZULU** (CHIMWE INVESTMENTS LIMITED)

("the Borrower)

In the presence of

Name:

Address:

mnoyo

Occupation:

SIGNED for and on behalf of **FUNDIT CAPITAL SOLUTIONS LIMITED**

In the presence of:

Name:

Address:

Occupation: RELATIONSHIP MANAGER

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Mnoyo

ACCOMPANYING PARTICULARS

(Description of the Property)

Describe in detail each piece of property sold under this S&P agreement (e.g. for a car, state make, model, colour, vehicle registration number, state serial number and detailed description for other types of property. Add as many additional pages as necessary.)

VEHIVLE NAME; **TOYOTA HILUX**
MODEL; **2022**
CHASIS NUMBER; **AHTCBS102016957**
REG NUMBER;**CAE 7855ZM**
NAME OF OWNER; **DINGISWAYO ZULU**

SPECIAL CONDITIONS

1. The Lenders advocates warrant that it does not act for the Borrower in any manner and shall at all times when called upon represent the Lender.

2. That the Borrower hereby covenants and warrants with the Lender that he is the lawful owner of the Property and that it has good and subsisting right, title and interest, and has full powers to pledge, surrender, sale, grant, convey, assign or otherwise dispose the said Property in the manner aforesaid.

3. The Borrower further agrees and covenants with the Lender that it shall keep the Lender free, clear and freely and clearly and absolutely acquitted, exonerated, released and forever discharged or otherwise by the Borrower, and the Lender shall further be sufficiently saved, defended, kept harmless and indemnified of, from and against all former charges or encumbrances whatever made, executed, occasioned and or suffered by the Borrower or by other person or persons having lawful and equitable claim, right, title or interest in the property hereby assigned, transferred or sold as will from time to time arise.

4. The Borrower hereby irrevocably and unconditionally permits the Lender to take any steps or actions which the Lender may deem necessary in order to give full effect to the terms of this S&P agreement, including, where necessary, registering the security interests which the Borrower has hereby granted to the Lender.

5. To the extent that the Property is movable property, the Borrower acknowledges that for purposes of the Movable Property (Security Interests) Act, 2016 this S&P Agreement constitutes a security agreement.

6. In relation to the Property which is movable property, the Borrower hereby irrevocably and unconditionally acknowledges and agrees that as long as the Borrower has not repaid the Facility Amount or is otherwise in default by the Due Date:

   (a) the Lender may take possession of the Property without judicial process or otherwise without a court order as permitted under section 72(3)(b) of the Movable Property (Security Interest) Act, 2016;

   (b) the Borrower shall comply with the Lender's instructions for the Borrower to assemble the Property and make it available at a place designated by the Lender in accordance with the rights granted to the Lender by virtue of section 72(4) of the Movable Property (Security Interest) Act, 2016;

(c) in accordance with section 72(5) of the Movable Property (Security Interest) Act, 2016, the Lender has no obligation to give prior notice to the Borrower in order for the Lender to repossess the Property; and

(d) the Lender may exercise the rights and powers set out in this clause 7 through its employees, agents or certified bailiffs and that any such exercise of the said rights or powers shall be lawful and binding on the Borrower.

7. The Borrower undertakes to give all and appropriate assistance as would be so required to effect the transfer of the Property to the Lender on the Due Date or at such time so soon thereafter as appointed by the Lender.

8. The Borrower has legal and marketable title to the Property and that the Property is not subject to an encumbrance or 3rd party interests.

9. The Borrower represents and warrants that the Lender shall have full legal right to the Property by virtue of the Borrowers default in settling the Facility Amount on the Due Date.

9.1 In the case of real property, all restrictions, conditions and covenants including any imposed by or pursuant to any lease affecting the Property have been observed and performed and no notice of any breach of any of the same have been received or is to the Lender's knowledge likely to be received;

10. The Borrower warrants further that upon execution of this S&P Agreement no person (s), successor(s), assign(s) or any other person(s) shall have claim whatsoever from and against the Lender in respect of the Property.

10.1 The execution or completion of this S&P Agreement or performance of its terms will not result in any breach of any agreement to which the Borrower is a party or of any Court Order against the Borrower.

10.2 In the case of real property, the lender is not aware of any intended expropriation or appropriation of the Property or any portion of it by the Government of the republic of Zambia and warrants that the property is not the subject of a foreclosure or other Court process by 3rd party.

11. The Lender and Borrower both warrant that they have full power and authority to enter into this S&P Agreement and to perform the obligations.

12. This S&P Agreement shall supersede all other previous agreements and negotiations relating to the Property subject to this agreement, if any, between the Lender and Borrower.

13. The Borrower having defaulted on the Due Date of the Facility Amount has agreed to sell the Property for the sum of "Purchase Price" as consideration to the Lender.

14. The Borrower shall have the option of buying back the Property after the Due Date but within 30 days thereof at a price equal to the Facility Amount outstanding together with all interests and expenses incurred and legal and administration costs. In the absence of any manifest error, the Lender's certificate as to the total amount payable in order for the Borrower to buy back the Property shall be conclusive and binding on the Borrower.

15. The Lender shall give seven days notification to the Borrower of the Lenders intention to dispose of the Property and once disposed of the Borrower shall be refunded any instalment payments made on the Facility Amount only up until default or before the default.

16. In the case of real property, the Property is sold subject to the exceptions, reservations, restrictions, restrictive, covenants and conditions mentioned, contained or referred to in the Certificate of Title relating to the Property.

17. The Property shall be handed over to the Lender on the Due Date or so soon thereafter and in the case of real property, vacant possession shall be given to the Lender on the Due Date.

18. The Property hereby contracted to be sold, is sold on "as is, where is" basis with no warranty on condition express or implied as to the state of repair or fitness for any particular purpose beyond what has been already imposed by the Municipality.

19. Both parties shall keep details relating to this Sale and Purchase Agreement as confidential and shall not disclose to any third party regarding the sale until after the issuance of the Certificate of Title in the name of the Lender.

20. The Borrower warrants to the Lender that information on the Property made available to date is true and correct and represents a fair and accurate picture of the Property also that since the date the Property information was given there has been no material adverse change in the position of the Property. The Borrower agrees to indemnify the Lender for any loss whatsoever arising as a result of the inaccuracy of any such information.

21. Dispute Resolution

Should any dispute or difference arise between the Parties to or in connection with this S&P Agreement (or its construction, operation or termination) which the Parties have been unable to settle amicably, then that dispute or difference shall be exclusively referred to competent Zambian ARBITRATION by a Sole Arbitrator with the seat of arbitration being Kitwe or Lusaka Zambia and subject to the Arbitration Act No.19 of 2000.